

HISTORY HACK · DOCUMENT-BASED QUESTION

Civil Liberties and the Home Front in World War I

US.27 — Identify and explain the impact of the following on World War I (T.C.A. § 49-6-1006): • Trench warfare • Use of new weapons and technology • John J. Pershing • Harlem Hell Fighters • Alvin C. York

US.28 — Analyze the political, economic, and social ramifications of World War I on the home front, including: • Role played by women and minorities • Voluntary rationing • Committee on Public Information (i.e., Creel Committee) • Opposition by conscientious objectors • Schenck v. United States decision

TEACHER EDITION — scoring guide and expected evidence. Not for student distribution.

Name _____ Class _____ Date _____

Directions. Read the two documents below. Then write a well-organized essay addressing the following question: How did the U.S. government's management of the home front during World War I reveal fundamental tensions between national security and the constitutional rights of American citizens? Your essay must: — Apply HIPP analysis to both documents — Construct a clear argument about the tension between security and liberty — Incorporate outside knowledge of specific home-front policies and their effects — Evaluate whether the balance struck was justified given the wartime context

The sources

Document 1

Espionage Act, June 15, 1917, Section 3 — Statutes at Large of the United States, public domain

“Whoever, when the United States is at war, shall willfully make or convey false reports or false statements with intent to interfere with the operation or success of the military or naval forces of the United States or to promote the success of its enemies... shall be punished by a fine of not more than \$10,000 or imprisonment for not more than twenty years, or both... Any newspaper, magazine, or other publication... containing any matter advocating or urging treason, insurrection, or forcible resistance to any law of the United States is hereby declared to be nonmailable.”

SOURCE IT — DOCUMENT 1

H — Historical context

What was happening when
this was made?

I — Intended audience

Who was meant to read or
hear it?

P — Purpose

What was it trying to make
the audience do or think?

P — Point of view

Who is speaking, and how
does that shape it?

Document 2

Schenck v. United States, Supreme Court of the United States, March 3, 1919 — public domain (U.S. government document)

“The most stringent protection of free speech would not protect a man in falsely shouting fire in a theatre and causing a panic. It does not even protect a man from an injunction against uttering words that may have all the effect of force... The question in every case is whether the words used are used in such circumstances and are of such a nature as to create a clear and present danger that they will bring about the substantive evils that Congress has a right to prevent.” — Justice Oliver Wendell Holmes, writing for the Court”

SOURCE IT — DOCUMENT 2

H — Historical context

What was happening when
this was made?

I — Intended audience

Who was meant to read or
hear it?

P — Purpose

What was it trying to make
the audience do or think?

P — Point of view

Who is speaking, and how
does that shape it?

The question

DOCUMENT 2 Schenck v. United States, Supreme Court of the United States, March 3, 1919

1. public domain (U.S. government document): "The most stringent protection of free speech would not protect a man in falsely shouting fire in a theatre and causing a panic. It does not even protect a man from an injunction against uttering words that may have all the effect of force... The question in every case is whether the words used are used in such circumstances and are of such a nature as to create a clear and present danger that they will bring about the substantive evils that Congress has a right to prevent."

2. Justice Oliver Wendell Holmes, writing for the Court

Plan your answer

Your claim	
------------	--

Source	Evidence you will use	Why it supports your claim
Document 1		
Document 2		
Outside knowledge		

Scoring guide

Pts	6-point scale
6	Exemplary. Complex, specific thesis addressing both security-liberty tension and evaluation of justification. HIPPA of both documents accurately — especially Burleson's postal power (Doc 1) and the fire-in-theatre analogy as applied to political speech rather than false speech (Doc 2). Extensive outside knowledge (Debs, IWW, Abrams dissent, Sedition Act of 1918, Brandenburg v. Ohio). Evaluative conclusion is specific and evidence-supported.
5	Advanced. Clear thesis. HIPPA of both documents. Good outside knowledge. Addresses tension and evaluation but may not achieve full nuance on the 'false speech vs. political opinion' distinction.
4	Proficient. Clear thesis. Both documents used as evidence. HIPPA of at least one document. Some outside knowledge. Coherent argument.
3	Adequate. Thesis present. Both documents used. Some HIPPA elements. Limited outside knowledge.
2	Developing. Weak thesis. Documents used without HIPPA.
1	Beginning. No thesis. Minimal document use.
0	No response or completely off-topic.

Expected evidence and document analysis. DOCUMENT ANALYSIS EXPECTATIONS: — Doc 1 (Espionage Act): Note the 'nonmailable' provision as a censorship mechanism; note the breadth of 'willfully make or convey' — it covers intent broadly; historical context = Committee on Public Information (CPI) and propaganda campaign running simultaneously. — Doc 2 (Schenck): Note Holmes's theatre analogy is technically about a false statement causing panic, not about political opinion — but the ruling applied the test to political leaflets; note 'clear and present danger' became the dominant First Amendment test until Brandenburg. KEY EVIDENCE EXPECTED: Espionage Act (1917) provisions; Sedition Act (1918) — extended to any 'disloyal, profane, scurrilous' language about the government; Postmaster Burleson's postal bans; Eugene V. Debs conviction (June 1918); IWW (Wobblies) prosecutions; Committee on Public Information (George Creel); Liberty Bonds / four-minute men; Abrams v. United States (1919, Holmes dissent); Brandenburg v. Ohio (1969) replacing 'clear and present danger' with 'imminent lawless action.'

Sourcing. Every document above carries its own citation as written in the item record. Verify each against the holding institution before classroom use — an unsourced primary source is worse than a missing one.

